

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE
JOINT RESOLUTION NO. 50 By: Bergstrom of the Senate
3
and
4
Kendrix of the House
5

6 A Joint Resolution approving certain proposed
7 permanent rules of the Oklahoma Health Care
Authority; and directing distribution.
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10 AUTHORS: Remove Representative Kendrix as principal House author
11 and substitute with Representative Eaves

12 Add the following House Coauthors: Kendrix and Hilbert
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14 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
15 and insert:

16 "A Joint Resolution directing the Secretary of State
17 to refer to the people for their approval or
18 rejection a proposed amendment to Section 2 of
19 Article XXV-A of the Constitution of the State of
20 Oklahoma; modifying duty of State of Oklahoma to
21 provide funding for certain persons pursuant to
22 federal Medicaid program based on modification of
23 certain matching amount of funding provided by the
24 federal government; providing for repeal of Sections
1, 2, 3, and 4 of Article XXV-A of the Constitution
based upon modification of federal funding provisions
in the Medicaid program; ordering a legislative
referendum; providing for enactment of statutory
provisions related to Medicaid funding based on
modification of certain matching amount of funding
provided by the federal government; prescribing
procedures for notification to the Secretary of

1 State, the Governor, the Speaker of the Oklahoma
2 House of Representatives and the President Pro
3 Tempore of the Oklahoma State Senate; imposing duties
4 on the Attorney General for notification of events
5 related to modification of federal Medicaid funding;
6 providing ballot title; and directing filing.

7 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
8 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

9 SECTION 1. The Secretary of State shall refer to the people for
10 their approval or rejection, as and in the manner provided by law,
11 the following proposed amendment to the Constitution of the State of
12 Oklahoma by repealing Sections 1, 2, as amended by Section 2 of this
13 measure, 3, and 4 of Article XXV-A of the Oklahoma Constitution.

14 The repeal of these sections shall only become effective as law if
15 the question contained in this measure is both approved by the
16 people and also if the federal government modifies the federal
17 medical assistance percentage (FMAP). If the federal medical
18 assistance percentage (FMAP) established under 42 U.S.C., Section
19 1396d(y) is modified, then within fifteen (15) days of the effective
20 date of such modification, the Attorney General shall send a
21 certification of that event to the Secretary of State, the Governor,
22 the Speaker of the Oklahoma House of Representatives, and the
23 President Pro Tempore of the Oklahoma State Senate. Each and every
24 one of those public officials, acting together or separately as
required, shall take such steps as necessary to cause the provisions

1 of the Oklahoma Constitution to be modified in order to make the
2 repeal of Sections 1, 2, 3, and 4 of Article XXV-A of the Oklahoma
3 Constitution effective as law. Such actions shall be completed not
4 later than fifteen (15) days after the latest date upon which any
5 one of the public officials receive the certification required by
6 the provisions of this section.

7 SECTION 2. The Secretary of State shall refer to the people for
8 their approval or rejection, as and in the manner provided by law,
9 the following proposed amendment to Section 2 of Article XXV-A of
10 the Constitution of the State of Oklahoma to read as follows:

11 Section 2. A. In addition to those otherwise eligible for
12 medical assistance under Oklahoma's Medicaid program, the State
13 shall, until the conditions described in subsection B of this
14 section occur, provide medical assistance under Oklahoma's Medicaid
15 program to Low Income Adults and for medical services at health care
16 facilities for which the State receives a match of one hundred
17 percent (100%) pursuant to federal law.

18 B. ~~No greater or additional burdens or restrictions on~~
19 ~~eligibility or enrollment shall be imposed on persons eligible for~~
20 ~~medical assistance pursuant to this Article than on any other~~
21 ~~population eligible for medical assistance under Oklahoma's Medicaid~~
22 ~~program~~ If the federal medical assistance percentage (FMAP)
23 established under 42 U.S.C., Section 1396d(y) is reduced below
24 ninety percent (90%), then the constitutional duty imposed on the

1 State by subsection A of this section shall cease to have effect,
2 notwithstanding any subsequent increases to such FMAP; provided,
3 however, this subsection shall not be construed to prohibit the
4 Legislature from enacting laws to provide Medicaid coverage to Low
5 Income Adults. The provisions of this subsection shall not be
6 applicable to medical services at health care facilities for which
7 the State receives a match of one hundred percent (100%) pursuant to
8 federal law.

9 SECTION 3. Pursuant to Section 3 of Article V of the Oklahoma
10 Constitution, there is hereby ordered the following legislative
11 referendum which shall be filed with the Secretary of State and
12 addressed to the Governor of the state, who shall submit the same to
13 the people for their approval or rejection. The enactment of
14 Sections 4, 5, and 6 of this measure shall only occur if this
15 measure is both approved by the people and also if the federal
16 government modifies the federal medical assistance percentage
17 (FMAP). If the federal medical assistance percentage (FMAP)
18 established under 42 U.S.C., Section 1396d(y) is modified, then
19 within fifteen (15) days of the effective date of such change, the
20 Attorney General shall send a certification of that event to the
21 Secretary of State, the Governor, the Speaker of the Oklahoma House
22 of Representatives, and the President Pro Tempore of the Oklahoma
23 State Senate. Each and every one of those public officials, acting
24 together or separately as required, shall take such steps as

1 necessary to cause the statutory provisions contained in Sections 4,
2 5, and 6 of this measure to become effective as law and to cause
3 those provisions to become part of the Oklahoma Statutes in the same
4 manner as other enacted statutes. Such actions shall be completed
5 not later than fifteen (15) days after the latest date upon which
6 any one of the public officials receive the certification required
7 by the provisions of this section.

8 SECTION 4. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 7401 of Title 63, unless there
10 is created a duplication in numbering, reads as follows:

11 As used in this act:

12 1. "Centers for Medicare and Medicaid Services" or "CMS" refers
13 to the agency responsible for administering the Medicaid program at
14 the federal level, including review and approval of State Plan
15 Amendments;

16 2. "Low-income adults" refers to those individuals over age
17 eighteen (18) and under age sixty-five (65) whose income does not
18 exceed one hundred thirty-three percent (133%) of the federal
19 poverty level, as described by and using the income methodology
20 provided in the federal Medicaid statute at 42 U.S.C., Section
21 1396a(a)(10)(A)(i)(VIII), and who meet applicable nonfinancial
22 eligibility conditions for Medicaid under 42 CFR, Part 435, Subpart
23 E;

1 3. "Medical assistance" means payment of part or all of the
2 cost of the care and services, or the care and services themselves,
3 or both, as provided in the federal Medicaid statute, 42 U.S.C.,
4 Section 1396 et seq.;

5 4. "Oklahoma Health Care Authority" refers to the single state
6 agency responsible for administering the Oklahoma Medicaid program
7 pursuant to 42 U.S.C., Section 1396a(a)(5); and

8 5. "State Plan Amendment" refers to the document(s) the state
9 submits to the Centers for Medicare and Medicaid Services for review
10 and approval before making a change to its program policies,
11 including setting forth the groups of individuals to be eligible for
12 medical assistance.

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 7402 of Title 63, unless there
15 is created a duplication in numbering, reads as follows:

16 In addition to those otherwise eligible for medical assistance
17 under Oklahoma's Medicaid program, the state shall provide medical
18 assistance under Oklahoma's Medicaid program to low-income adults
19 and for medical services at health care facilities for which the
20 State receives a match of one hundred percent (100%) pursuant to
21 federal law.

22 SECTION 6. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 7403 of Title 63, unless there
24 is created a duplication in numbering, reads as follows:

1 The Oklahoma Health Care Authority shall take all actions
2 necessary to maximize federal financial participation in funding
3 medical assistance pursuant to this act.

4 SECTION 7. The Ballot Title for the proposed Constitutional
5 amendment repealing Sections 1, 2, as amended by Section 2 of this
6 measure, 3, and 4 of Article XXV-A of the Oklahoma Constitution and
7 the enactment of statutory provisions related to Medicaid as set
8 forth in Sections 4 through 6 of this measure shall be in the
9 following form:

10 BALLOT TITLE

11 Legislative Referendum No. _____ State Question No. _____

12 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

13 This measure proposes an amendment to the Oklahoma Constitution
14 by repealing Sections 1, 2, 3, and 4 of Article 25-A, and it
15 also proposes the enactment of substantially the same language
16 from those constitutional sections as statutes. The repeal of
17 the constitutional sections and the enactment of statutes to
18 replace those constitutional provisions would not occur unless
19 the federal government reduces the amount of money it pays to
20 states in order to operate the Medicaid program. It also
21 proposes an amendment to Section 2 of Article 25-A which relates
22 to Medicaid. This change in the Constitution would become
23 effective if this measure is approved by the voters. The change
24 is related to the amount of money the federal government

1 provides for the Medicaid program. If the federal government
2 reduced the amount of money that it pays to states for the
3 Medicaid program to less than ninety percent (90%), then
4 Oklahoma would not be required to provide funding to pay medical
5 costs in the Medicaid program for certain low-income adults. If
6 this measure is approved and if the federal government modifies
7 the amount of money it pays to states for the Medicaid program,
8 then all of the provisions in the Oklahoma Constitution related
9 to Medicaid would be repealed, but the substantive language
10 related to Medicaid from the constitutional sections would
11 become enacted as statutes of the State of Oklahoma. The
12 statutes could be amended, repealed, or otherwise modified by
13 the Legislature pursuant to the same procedures that allow
14 enactment of laws during any regular or extraordinary session of
15 the Legislature. If the federal government makes funding
16 changes in the Medicaid program, the Attorney General would
17 notify several public officials and the officials would have
18 fifteen (15) days to update the text of the Constitution and
19 Oklahoma Statutes.

20 SHALL THE PROPOSAL BE APPROVED?

21 FOR THE PROPOSAL — YES _____

22 AGAINST THE PROPOSAL — NO _____

23 SECTION 8. The Chief Clerk of the House of Representatives,
24 immediately after the passage of this measure, shall prepare and

1 file one copy thereof, including the Ballot Title set forth in
2 SECTION 7 hereof, with the Secretary of State and one copy with the
3 Attorney General."

4 Passed the House of Representatives the 7th day of May, 2026.

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7 Presiding Officer of the House
8 of Representatives

9 Passed the Senate the ____ day of _____, 2026.

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12 Presiding Officer of the Senate

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1 ENGROSSED SENATE
JOINT
2 RESOLUTION NO. 50

By: Bergstrom of the Senate

3 and

4 Kendrix of the House

5
6 A Joint Resolution approving certain proposed
7 permanent rules of the Oklahoma Health Care
Authority; and directing distribution.

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10 WHEREAS, pursuant to Section 308 of Title 75 of the Oklahoma
11 Statutes, major rules shall be addressed in a joint resolution only
12 addressing major rules; and

13 WHEREAS, the proposed permanent rules in Oklahoma Health Care
14 Authority OAC 317:30-5-354, 317:30-5-355.2, 317:30-5-356, 317:30-5-
15 359.2, 317:30-5-659, 317:30-5-661.1, 317:30-5-661.5, 317:30-5-664.3,
16 and 317:30-5-664.5 meet the definition of major rule set forth in
17 Section 250.3 of Title 75 of the Oklahoma Statutes.

18 NOW, THEREFORE, BE IT RESOLVED BY THE SENATE AND THE HOUSE OF
19 REPRESENTATIVES OF THE 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

20 SECTION 9. The following proposed permanent rules promulgated
21 by the Oklahoma Health Care Authority are hereby approved: OAC
22 317:30-5-354, 317:30-5-355.2, 317:30-5-356, 317:30-5-359.2, 317:30-
23 5-659, 317:30-5-661.1, 317:30-5-661.5, 317:30-5-664.3, and 317:30-5-
24 664.5.

1 SECTION 10. The Secretary of State is directed to distribute
2 copies of this resolution to the Governor and the editor of "The
3 Oklahoma Register".

4 Passed the Senate the 5th day of May, 2026.

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Presiding Officer of the Senate

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8 Passed the House of Representatives the ____ day of _____,
9 2026.

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Presiding Officer of the House
of Representatives

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